Zimbabwe

Limitation of Liability (Passengers in State Aircraft) Act

Chapter 8:08

Legislation as at 31 December 2016

There may have been updates since this file was created.

PDF created on 10 June 2025 at 10:47.

Collection last checked for updates: 31 December 2017.

View online

About this collection

The legislation in this collection has been reproduced as it was originally printed in the Government Gazette, with improved formatting and with minor typographical errors corrected. All amendments have been applied directly to the text and annotated. A scan of the original gazette of each piece of legislation (including amendments) is available for reference.

www.laws.africa
info@laws.africa

FRBR URI: /akn/zw/act/1963/13/eng@2016-12-31

There is no copyright on the legislative content of this document.
This PDF copy is licensed under a Creative Commons Attribution 4.0 License (CC BY 4.0). Share widely and freely.

Limitation of Liability (Passengers in State Aircraft) Act (Chapter 8:08)
Contents

1. Short title 1

2. Interpretation 1

3. Limitation of liability in respect of life of or bodily injury to passengers carried in State aircraft 1

4. Limitation of liability in respect of destruction or loss of or damage to luggage and personal effects of passengers carried in State aircraft 2

5. Savings 2

Zimbabwe

Limitation of Liability (Passengers in State Aircraft) Act
Chapter 8:08

Commenced on 31 December 1963

[This is the version of this document at 31 December 2016 and includes any amendments published up to 31 December 2017.]

[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

AN ACT to limit the liability of the State in respect of the loss of life of or bodily injury to passengers carried in aircraft in the service of the State and the deduction or loss of or damage to their luggage and personal effects and to make incidental provision in that connection.

1. Short title

This Act may be cited as the Limitation of Liability (Passengers in State Aircraft) Act *[Chapter 8:08]*.

2. Interpretation

In this Act—

"**Convention**" means the Convention for the Unification of Certain Rules relating to International Carriage by Air which was signed at Warsaw on the 12th October, 1929;

"**conventional damages**"—

(a) in relation to loss of life or bodily injury to which section three relates, means an amount in currency which is legal tender in Zimbabwe equal to the sum fixed from time to time by the Convention as the limit of the liability of a carrier in respect of damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger;

(b) in relation to the destruction or loss of or damage to luggage and personal effects to which section four relates, means an amount in currency which is legal tender in Zimbabwe equal to the sum fixed from time to time by the Convention as the limit of the liability of a carrier in respect of damage sustained in the event of the destruction or loss of or damage to any luggage of which the passenger takes charge himself;

"**passenger**", in relation to a State aircraft, includes any person other than the pilot or member of the crew of the aircraft;

"**State aircraft**"—

(a) means any aircraft which—

(i) is the property of the State, or is let out on hire to the State, with or without pilot or crew; and

(ii) is employed in the service of the State; and

(b) includes any aircraft of the Air Force of Zimbabwe.

3. Limitation of liability in respect of life of or bodily injury to passengers carried in State aircraft

The total liability of the State to pay damages in respect of the loss of life of or bodily injury caused on any one occasion to any one person whilst journeying as a passenger in a State aircraft or whilst entering or

alighting from a State aircraft in connection with a journey made or to be made by him as a passenger in the aircraft shall not exceed the conventional damages.

4. Limitation of liability in respect of destruction or loss of or damage to luggage and personal effects of passengers carried in State aircraft

(1) The total liability of the State to pay damages in respect of the destruction or loss of or damage to luggage and personal effects of a person referred to in section three which is sustained in the course of the journey of the person as a passenger in a State aircraft shall not exceed the conventional damages.

(2) For the purposes of subsection (1), the destruction or loss of damage to the luggage or personal effects of a person referred to in section three shall be treated as having been sustained in the course of the journey of the person as a passenger in a State aircraft if the luggage or personal effects are destroyed, lost or damaged whilst in the aircraft.

5. Savings

Nothing in this Act shall be construed as—

(a) affecting the operation within Zimbabwe of the Convention; or

(b) derogating from any enactment or contract, including a contract of insurance, in terms of which a pension or other benefit is payable by the State or any person in respect of loss of life or bodily injury.

By Laws.Africa and contributors. Licensed under CC-BY. Share widely and freely.